

question was “discretionary” or “ministerial,” respectively. [Citations.] For this reason, contentions such as the City makes here have frequently required judicial determination of the category into which the particular act falls: i.e., whether it was ministerial because it amounted “only to an obedience to orders, or the performance of a duty in which the officer is left no choice of his own,” or discretionary because it required “personal deliberation, decision and judgment.” (McCorkle v. City of Los Angeles (1969) 70 Cal. 2d 252, 260–61 (“McCorkle”).)

“[T]here is no requirement that the public employee's exercise of discretion be based on “a *strictly careful, thorough, formal, or correct* evaluation” because “[s]uch a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy.” (Krolikowski v. San Diego City Employees' Ret. Sys. (2018) 24 Cal. App. 5th 537, 550–51.)

Here, Patricia Baglien (“Plaintiff”) and Plaintiff’s former employers, Nicole Garcia (“Nicole” individually) and George Garcia (“Garcias” together with Nicole), had a disagreement over whether Plaintiff could continue to remain in the home after Plaintiff’s employment was terminated. Defendants arrived on scene to find a dispute over the right to be on the property. Defendants then proceeded to gather information from the individual present. Plaintiff told Defendants she had not been evicted, that the unlawful detainer action was still pending, that Nicole had changed the locks which required Plaintiff to enter the house through a window, and Nicole had boxed up all of Plaintiff’s possessions when Plaintiff was away in Las Vegas for three-days. Plaintiff could produce no lease or contract stating she had the right to be on the property. Nicole notified Defendants that she was the owner of the home, she had evicted Plaintiff and Plaintiff had no right to be there, Nicole had a special needs child who could not communicate when he was sick, and she was concerned about Plaintiff possibly transmitting COVID to Nicole and the children since Plaintiff had been gone. Garcias’ new childcare provider notified Defendants that Plaintiff had been yelling, which scared the children. Defendants then attempted to mediate a peaceful resolution between Plaintiff and Nicole wherein Nicole would give Plaintiff \$600 to leave the property and rent a hotel room. Defendants gave Plaintiff the option to take the money and leave, or to be arrested for trespassing.

The actions of Defendants, with perhaps the exception of the initial response to the call, all appear to be discretionary and not ministerial as Defendants appeared to have weighed the evidence presented to them and decided to order Plaintiff to leave the property under threat of arrest. While Plaintiff alleged the COVID-19 moratorium on evictions was in place at the time and Defendants improperly “evicted” her, Defendants appear to have taken this into consideration as Plaintiff notified Defendants of the issue and Hertz contacted someone in the eviction department to determine if the moratorium applied to this set of facts.

"[U]nder California law "[i]t is generally recognized that a statutory governmental immunity overrides a statute imposing liability." [Citations.] Thus, absent "a clear indication of legislative intent that statutory immunity is withheld or withdrawn," a specific statutory immunity applies to shield a public employee from liability imposed by a particular statute." (*O'Toole v. Superior Ct.* (2006) 140 Cal. App. 4th 488, 504 [Applying immunity under Gov't. Code § 820.6.]; See also, *Towery v. State of California* (2017) 14 Cal. App. 5th 226, 235-37.) "On our examination of Civil Code section 52.1, we have found no indication the Legislature intended to create an exception to the general rule. Civil Code section 52.1 contains no indicia reflecting an intent that public employees may be sued despite a statutory immunity that would otherwise apply." (*O'Toole, supra*, 140 Cal. App. 4th at 504.)

Defendants have successfully met their initial burden of proving a complete defense to this COA pursuant to Gov't. Code § 820.2. The burden now transfers to Plaintiff to show triable issues of material fact remain.

Plaintiff argues, "instead of interpreting "discretionary" literally, the focus should be on the policy considerations underlying the governmental entity's claim of immunity." (*Steinle v. City & Cnty. of San Francisco*, 919 F.3d 1154, 1160–61 (9th Cir. 2019).) However, the policy considerations in granting police immunity in this situation favor granting the motion instead of denying it. Although Plaintiff was threatened with arrest, she was never arrested. Although the officers might have violated the COVID eviction moratorium, they acted in their discretion in doing so in order to keep the peace. Gov't Code § 820.2 was designed to protect (among others) police who exercise their discretion. Here, the officers arrived for what is essentially a trespass/domestic disturbance call, were provided information that Plaintiff had illegally entered the property, and the officers attempted to work out a peaceful resolution in a potentially volatile situation that occurred in the early stages of a worldwide pandemic. This is the type of situation where in public policy would support providing immunity to the officers to keep the peace and find peaceful solutions to potentially volatile disagreements. The officers have sufficiently pled a valid defense to Ralph Act with Gov't Code § 820.2.

As the officer defendants are immune pursuant to Gov't Code § 815.2, there can be no liability as to the County. (Gov't Code § 815.2)

Additionally, as Plaintiff produced no evidence of any violence perpetrated on her or her property other than a deposition testimony, Plaintiff cannot maintain this COA. The mere threat of an arrest, and in some instances an arrest itself, are not enough to support a Ralph Act claim. "Unlike section 52.1 [Bane Act], section 51.7 [Ralph Act] expressly requires that a plaintiff allege "violence, or intimidation by threat of violence." Cal. Civ. Code § 51.7(a). We agree with the district court that an arrest or threat of arrest alone does not necessarily involve violence or a threat of violence."